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CASE #	CASE NAME	HEARING NAME
CVRI2400939	ROE VS COUNTY OF RIVERSIDE	MOTIONS FOR DISCLOSURE OF PEACE OFFICER PERSONNEL RECORDS PURSUANT TO EVIDENCE CODE 10431045 (PITCHESS MOTION)— 13 MOTIONS

Tentative Ruling: Plaintiffs bring 13 *Pitchess* motions in this consolidated action involving allegations of sexual assault and abuse of minors in the custody of the Probation department. Generally, Plaintiffs seeks documents (1) concerning any incident where a minor claimed sexual assault or inappropriate conduct by the peace officers; (2) recordings/transcripts of interviews regarding same incidents; (3) complaints filed against peace officers regarding sexual misconduct; (4) personnel records regarding sexual misconduct; (5) investigations that peace officers were intimately involved with juveniles; (6) disciplinary actions regarding peace officers; (7) intake, hiring and background reports regarding peace officers' fitness to be hired as a probation officer; (8) termination proceedings or reasons why peace officers left County employment; (9) training records regarding appropriate boundaries with inmates, sexual abuse prevention and mandated reporter training; and (10) all communications with any prosecutor's office or law enforcement agency relating to peace officers. Plaintiffs argue the records demonstrate a pattern and practice of assaulting the minors, and County's knowledge and deliberate indifference. They argue public interest factors disclosure based on the 2018 amendments to Penal Code section 832.7. Plaintiffs are willing to execute any protective order if needed.

County challenges the declarations in support of the motions, arguing they fail to show good cause because they were written by plaintiffs' counsel. In addition, the County argues that the requests are overbroad, seeking 10 categories without limiting the requests to sexual misconduct or harassment, such as discipline records. The requests are not limited in time. County requests an in camera hearing and protective order. It asks that the discovery be limited to name and contact of prior complainants and witnesses rather than reports and that the Court set a compliance date in the future rather than immediate disclosure on the date of the in camera review. County makes arguments specific to officers Smith, Lopez, Putnam, and Studemeier.

The moving party only needs to show a plausible factual foundation for discovery. *Warrick v. Superior Court (City of Los Angeles Police Dept.)* (2005) 35 Cal.4th 1011, 1019. All that is required is the presentation of a scenario that may have or could have occurred, which is a relatively low threshold. *Uybungco v. Superior Court* (2008) 163 Cal.App.4th 1043, 1048.) An attorney declaration based upon information and belief and containing hearsay may be used to evidence good cause in support of a *Pitchess* motion. *Haggerty v. Superior Court* (2004) 117 Cal.App.4th 1079, 1086.

"Good cause for discovery exists when the defendant shows both 'materiality' to the subject matter of the pending litigation and a 'reasonable belief' that the agency has the type of information sought.' " [Citation.] A showing of good cause is measured by " 'relatively relaxed standards' " that serve to "insure the production" for trial court

review of “ ‘all potentially relevant documents.’ ” *Warrick v. Superior Court* (2005) 35 Cal.4th 1011, 1016. It “is a ‘relatively low threshold for discovery.’” *Id.* at 1019.

The motions include a declaration indicating the bases for each plaintiff’s relationship with each of the officers and the sexual abuse they each suffered from each officer. Further, each declaration establishes the materiality of the records as to a pattern and propensity of conduct, the County’s knowledge of the misconduct, whether the County negligently hired, retained, trained and supervised the officers, whether failure to comply with mandatory reporting statutes would constitute negligence per se and the reasons for departure from employment relating to sexual misconduct. Thus, good cause has been established.

As to scope and time period, several of the categories are overbroad, including *all* disciplinary actions against the officers, *all* background reports and *all* communications with law enforcement relating to the officers. Appearances requested to discuss how the requests should be limited, e.g., narrowed to sexual misconduct, harassment or abuse by the specific officer and not simply anyone in that officer’s command. Should the time period be limited to that when the individual plaintiffs were in the custody of the Probation department and a specific time period before/after?

Conclusions should be redacted from reports of internal investigations. If there are any records covered by the attorney/client privilege or the work product doctrine, County needs to specify what records it believes are protected and provide sufficient information for the Court and opposing counsel to evaluate the claim of privilege.

Appearances also requested to discuss the form of a protective order and the time for compliance after an in camera review.

Grant in camera review.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2405317	PICHARDO VS T.W.R. ENTERPRISES, INC.	MOTION FOR APPROVAL OF PAGA SETTLEMENT

Tentative Ruling: Appearances requested to discuss:

1. No evidence that plaintiff suffered any alleged Labor Code violation within one year before the filing of the complaint or notice to the LWDA.
2. What was the amount of the individual settlement?
3. What is the justification for dismissing the class claims?
4. Release language is broader than that in the CMO (both as to definition of who is being released—do all of the released persons actually have even a possibility of liability for the PAGA penalties?--and that it applies to the aggrieved employees as well as the state and the named plaintiff).